

LOPEZ v. ROSE

23CF14110

PLAINTIFF'S APPLICATION FOR WRIT OF POSSESSION

This is a civil action for conversion of personal property between former romantic partners and cohabitators. Before the Court is plaintiff's application for a writ of possession for his French bulldog. There is a related action between the parties (22DV46201).

Pursuant to Code of Civil Procedure §§ 512.060 and 515.010, a writ of possession "shall" issue if (1) the plaintiff has established the probable validity of its claim to possession of tangible property and (2) the plaintiff has provided an undertaking of not less than twice the value of defendant's interest, if any, in the property. To establish *probable validity*, plaintiff must show that it is "more likely than not" that the plaintiff will obtain a judgment against the defendant on the possession claim. (See *People v. Superior Court* (2002) 27 Cal.4th 888, 919.) To meet this standard, the plaintiff must show (1) that it is entitled to immediate possession of the property and (2) that defendant's continued possession is wrongful. (CCP §512.010(b)(1)-(2); see *Cassel v. Kolb* (1999) 72 Cal.App.4th 568, 575-576.) In addition, if the property is held at a private place, plaintiff must also establish probable cause to believe that the property is in fact located at the private place. (CCP §512.010(b)(4).)

Although plaintiff makes a compelling showing that the dog belongs to plaintiff and that defendant's continued possession is unlawful, that is not the end of the analysis. On 08/02/22, this Court issued a Temporary Restraining Order in 22DV46201 against plaintiff, obligating him to move out of the home at 5393 Spur Road, Angels Camp, to have no contact with defendant, and to stay 150 yards away from the subject dog, as this Court gave defendant sole possession, care and custody of the dog. The order was issued ex parte, without hearing plaintiff's side. Although plaintiff filed a response in that case explaining why he contended the dog belonged to him, that issue has yet to be adjudicated at an evidentiary hearing (currently scheduled for 5/31/23), resulting in repeated orders extending the TRO. Additionally, in another related case (22CH46222), plaintiff's mother secured a temporary civil harassment restraining order against defendant, prohibiting defendant from coming within 150 yards of the same residence, and further to stay away from *Janice's* French Bulldog ... another dog that the Court in 22DV46201 gave to defendant (as opposed to plaintiff).

Both 22DV46201 and 22CH46222 are set for an evidentiary hearing on 05/31/23. It seems to this Court that the most orderly method for resolving plaintiff's claimed possessory interest in the dog is to address the matter in the trial of those cases,

including the imposition of a bond requirement as to plaintiff if he is awarded possession of the dog. If granted, plaintiff may be required to post a bond. Hearing on application for writ of possession continued to 5/31/23 at 8:30 a.m. in Dept. 2.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order will be required.

BROWN, ET AL v. STATE OF CALIFORNIA

23CV46681

PETITION FOR ORDER PERMITTING LATE CLAIM

This is a special proceeding pursuant to Govt. Code §946.6 for leave to submit a late governmental claim for an incident involving a runaway golf cart.

The Governmental Claim Act's purpose is to provide the public entity sufficient information to enable it to (1) investigate/settle claims without the expense of litigation, (2) plan for potential fiscal liabilities, and (3) avoid similar liabilities in the future. (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738; *E.M. v. LA Unified School Dist.* (2011) 194 Cal.App.4th 736, 748; *Westcon Construction Corp. v. County of Sacramento* (2007) 152 Cal.App.4th 183, 200.)+ As such, no suit for money or damages may be maintained against a governmental entity unless a formal claim has been presented to such entity within six months of accrual of the cause of action. (Govt. Code §911.2; *Munoz v. State of Calif.* (1995) 33 Cal.App.4th 1767, 1776.) If the claimant fails to file within six months, he or she may apply in writing to the public entity for permission to file a late claim. (Govt. Code §911.4; see *J.M. v. Huntington Beach Union High School Dist.* (2017) 2 Cal.5th 648, 656.) If the public entity denies the application to file a late claim, the claimant may petition the court for relief within 6 months thereafter. (Govt. Code §946.6; *Coble v. Ventura County Health Care Agency* (2021) 73 Cal.App.5th 417, 425.) A court may relieve a petitioner from the government claims requirements if the court finds that the claimant's failure was the result of mistake, inadvertence, surprise or excusable neglect, and that the public entity will not be prejudiced; or if the claimant was a minor throughout the claims-filing period. As a general rule, where the other timing requirements have otherwise been satisfied, and reasonable grounds stated, doubts are resolved in favor of the petitioners.

The hearing on this petition must be continued. The Court file contains only the opening petition and petitioners' reply, but not the State's opposition to the petition, which was rejected in an attempted e-filing for lack of a proper signature. The State is ordered to effect the filing of their opposition papers forthwith. Hearing continued to 05/26/23 at 9:00 a.m.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further order will be required at this time.